THE INDUSTRIAL DISPUTES (BANKING AND INSURANCE COMPANIES) ACT, 1949

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title and extent.
2. Definitions.
3. [*Repealed*.]
4. Prohibition of references by State Governments of certain industrial disputes for adjudication, inquiry or settlement.
5. Abatement of proceedings relating to disputes pending before State tribunals and reference of such disputes to tribunals constituted by the Central Government.
6. Powers of Central Government to refer disputes in respect of which awards or decisions have been made for adjudication.
7. Repeal of Ordinance 28 of 1949.

IndiaCode

THE INDUSTRIAL DISPUTES (BANKING AND INSURANCE COMPANIES) ACT, 1949

ACT NO. 54 OF 1949[1]

[14*th December*, 1949.]

An Act to provide for the adjudication of industrial disputes concerning certain banking and insurance companies.

WHEREAS it is expedient to provide for the adjudication of industrial disputes concerning banking and insurance companies having branches or other establishments in more than one State;

It is hereby enacted as follows:—

1. Short title and extent.—(*1*) This Act may be called the Industrial Disputes (Banking and Insurance Companies) Act, 1949.

(*2*) It extends to the whole of India [2][except the State of Jammu and Kashmir*].

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context, the expressions "award", "banking company", "industrial dispute" and "insurance company" have the meanings respectively assigned to them in section 2 of the Industrial Disputes Act, 1947 (14 of 1947) as amended by this Act.

3. [*Amendment of section 2, Act 14 of 1947.*] *Rep. by the Repealing and Amending Act, 1952* (48 *of* 1952), *s.* 2 *and the First Schedule.*

4. Prohibition of references by [3][State] Governments of certain industrial disputes for adjudication, inquiry or settlement.—Notwithstanding anything contained in any other law, it shall not be competent for a State Government or any officer or authority subordinate to such Government to refer an industrial dispute concerning any banking or insurance company, or any matter relating to such dispute, to any tribunal or other authority for adjudication, inquiry or settlement.

5. Abatement of proceedings relating to disputes pending before [3][State] tribunals and reference of such disputes to tribunals constituted by the Central Government.—(*1*) Where under any law any industrial dispute concerning any banking or insurance company or any matter relating to such dispute has, before the 30th day of April, 1949, been referred by a 3[State] Government or any officer or authority subordinate to such Government to any tribunal or other authority for adjudication or settlement and any proceedings in respect of or arising out of such reference were immediately before that date pending before any tribunal or other authority, then on the aforesaid date such refence shall be deemed to have been withdrawn and all such proceedings shall have abated.

(*2*) The Central Government shall, as soon as may be after the commencement of this Act, by order in writing, refer under section 10 of the said Act every industrial dispute to which the provisions of sub-section (*1*) apply to an Industrial Tribunal constituted under the said Act for adjudication.

6. Powers of Central Government to refer disputes in respect of which awards or decisions have been made for adjudication.—(*1*) Where any award or decision has been made in respect of any industrial dispute concerning any banking or insurance company by any tribunal or other authority constituted or appointed by a [3][State] Government, or any officer or authority subordinate to such Government, then the Central Government may, notwithstanding that the said award or decision is in force, by order in writing refer under section 10 of the said Act the dispute or any of the matters in dispute to an Industrial Tribunal constituted under the said Act for adjudication and stay the implementation of the award or decision so made or of any part of such award or decision until the Industrial Tribunal to

1. The Act has been extended to the Scheduled Areas of the State of Orissa by Orissa Reg. 1 of 1956 and amended in U.P. by U.P. Act 25 of 1951.
2. Subs. by Act 3 of 1951, s. 3 and the Schedule, for "except Part B States" (w.e.f. 1-4-1951).
3. Subs. by the A.O. 1950, for "Provincial".

*. *Vide* Notification No. S.O. 3912 (E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

which the dispute or any of the matters in dispute is referred for adjudication has submitted its award or for such further period as the Central Government may consider necessary.

(*2*) After the Industrial Tribunal to which the dispute or any of the matters in dispute has been so referred for adjudication has submitted its award under sub-section (*1*) of section 15 of the said Act, the Central Government may, by order in writing, declare that the award or decision previously made in respect of such dispute by the tribunal or other authority constituted or appointed by the [1][State] Government or any officer or authority subordinate to such Government or such part of that award or decision as may be specified in the order shall cease to be in operation.

7. Repeal of Ordinance 28 of 1949.—(*1*) The Industrial Disputes (Banking and Insurance Companies) Second Ordinance, 1949 (28 of 1949) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such thing was done or action taken.

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1. Subs. by the A.O. 1950, for "Provincial".